

must be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (CCP § 1033.5(c)(2).) Here, Plaintiff has made no showing that this expense was reasonably necessary rather than merely convenient. Thus, the Court GRANTS the motion with respect to this cost.

Other - Touch Device Rental (\$2,035.00). This charge is for the device the Court requested from the court reporter so it could view the “realtime” transcription from day 2 of trial all the way through Verdict on day 11 of trial. (Pl.’s Opp. 14:17–20.) Plaintiff seeks only the cost of renting the device the Court requested from the court reporter. (*Id.* at 14:26–28.) Having provided supporting documentation (Devabose Decl. ¶¶ 4, 10, Exs. A & G), these costs are recoverable under the expanded recovery scheme under Civ. Code § 1794(d), and are reasonably necessary. (*Nelson, supra*, 72 Cal.App.4th at 131–32.) Thus, the Court DENIES the motion with respect to this cost.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2200196	SPANN VS BANKERS INSURANCE COMPANY	RENEWED MOTION FOR DISCOVERY PURSUANT TO EVIDENCE CODE § 1043 ET SEQ. (PITCHESS)

Tentative Ruling:

The Court GRANTS in part the *Pitchess* motion as to Officer Arden’s taser-related complaint, review, certification, recertification, and training deficiency and corrective records. The Court DENIES the motion as to the remaining records for failure to establish the existence of new or different facts to support a renewed motion.

Here, the Court denied the prior *Pitchess* motion, which Plaintiffs now renew to seek relief again. Accordingly, Plaintiffs must demonstrate new or different facts, circumstances or law. (C.C.P. § 1008(b).)

Plaintiffs argue that officer testimony and evidence presented at Herrera’s criminal trial, which was not held until after their initial *Pitchess* motion was denied, constitute new facts to support this renewed *Pitchess* motion.

A. Herrera’s Pre-Arrival Communications with PSPD

Plaintiffs contend that dispatch recordings and Officer Arden’s testimony now establish that Officer Arden was informed that Herrera was a “fugitive recovery agent” before Decedent called PSPD for help during the encounter, but that Officer Arden “apparently fell victim to Herrera attire” and may contend that he “believed Herrera was law enforcement or part of a lawful police operation.” (Reply, pp. 2-4.) However, the

evidence shows that these are not “new facts,” as Plaintiffs were in possession of these facts at the time they filed their prior *Pitchess* motion.

“[F]acts of which the party seeking reconsideration [or renewal] was aware at the time of the original ruling are not ‘new or different’” facts to support a motion under C.C.P. § 1008. (*In re Marriage of Herr* (2009) 174 Cal.App.4th 1463.) Here, the evidence shows that Plaintiffs were aware that PSPD had been informed that Herrera was a fugitive recovery agent prior to Decedent’s 911 call at the time that their initial *Pitchess* motion was heard on March 18, 2025. Specifically, Exhibit 1 to the FAC, which is a copy of the Court’s Order Holding Defendant [Herrera] to Answer as Charged in the Complaint, states: “Shortly after 1:45 a.m. on Thursday, April 23, 2021, defendant [Herrera] contacted the Palm Springs police department to notify them that he would be attempting to apprehend Spann at Spann’s residence in Palm Springs. Defendant identified himself in the call as a fugitive apprehension agent... Approximately 25 minutes later, Spann contacted 9-1-1 and reported that someone was attempting to break into his residence. An on-duty police sergeant monitoring radio calls correctly concluded that defendant’s and Spann’s calls were related. She therefore caused a call to be placed to defendant at or around 2:15 a.m. Defendant did not answer, but shortly thereafter he called back to Palm Springs police requesting emergency assistance.” (FAC, Exh. 1, pp. 6-7.) Exhibit 1 further states, “The court also concludes that while defendant’s impersonation of a law-abiding BFRP [Bail Fugitive Recovery Person] did not fool Spann, it apparently convinced Arden. This is not surprising given defendant’s calls in advance to Palm Springs police, his law enforcement-style uniform, his repeated references to an arrest warrant, his law enforcement-like references to ‘a partner,’ and his law enforcement-like manner in holding Spann at gunpoint. Defendant’s quick grasp and understanding of the term ‘lethal’ also gave Arden no reason to believe that defendant lacked the authority to do what he was doing.” (FAC, Exh. 1, pp. 20-21.)

Accordingly, Plaintiffs’ own evidence shows that they knew of the facts that Herrera had informed PSPD of the fact that he was a fugitive recovery agent prior to Decedent’s 911 call, and that Herrera’s call to the PSPD possibly contributed to Arden’s belief that Herrera was a BFRP at the time of the encounter. As such, Plaintiffs fail to establish that Herrera’s pre-arrival communications with PSPD constitute “new facts” to support a renewed motion.

B. Officer Arden’s Taser Testimony

Plaintiffs then argue that Officer Arden’s trial testimony that he has never had a Taser work constitutes a new fact that supports their request for Taser-related training and certification records, which they allege are “material both to the Bane Act intent element and to impeachment of any contrary defense characterization.” (Motion, p. 11.) Although Plaintiffs’ prior motion sought training records regarding deploying a taser, there is no evidence that Plaintiffs knew of Officer Arden’s prior experiences with a taser at that time. Thus, Officer Arden’s taser testimony constitutes “new facts” sufficient to support a renewed motion for taser-related training records.

C. Officer Arden's Lethal Coverage Testimony

Plaintiff presents trial testimony in which Officer Arden explains that he asked Herrera whether he had “lethal” [coverage] “in case the taser doesn’t work.” Plaintiff argues that this testimony as to why Officer Arden requested lethal coverage constitutes “new facts” because it establishes that Officer Arden “deployed a taser that he admitted was ineffective in this incident and had never worked for him in prior deployments.” (Reply, p. 5.)

However, Officer Arden’s testimony does not establish that he knew that his particular taser was ineffective before he deployed it. Rather, Officer Arden’s trial testimony states, “Now, I want to try to avoid somebody getting shot. So I’m thinking, is there a better way or maybe there’s another way we could handle this. That’s why I pulled out my Taser. But before I do that, I want to make sure my partner is going to have that lethal coverage for me in case the Taser doesn’t work or he continues to advance before I get my Taser to deploy.” (Crim. Feb. 26, 2026 Tr., 34:5-11.) However, as noted above, Officer Arden’s taser testimony constitutes new facts sufficient to renew this *Pitchess* motion for Officer Arden’s taser-related records.

D. Sheriff Investigator Bishop's Testimony

Lastly, Plaintiff argues that Sheriff Investigator Jarred Bishop’s testimony establishes that the encounter was a law-enforcement use-of-force or constructive-custody death, and therefore constitutes new facts to support a renewed motion.

However, Investigator Bishop’s testimony merely states that PSPD specifically requested the Sheriff’s Department and FID [Force Investigation Department] “to assume an investigation that occurred at that location because it involved the use of force and then ultimately the death of an individual in the presence of law enforcement,” a request that was standard in Riverside County. (Crim. Feb. 25, 2026 Tr., 18:12-20.) Investigator Bishop then testified that the “use of force” also includes the use of “less lethal options, in this case, a Taser or a baton, or they may end up using lethal force and shoot at or shoot somebody.” (Crim. Feb. 25, 2026 Tr., 18:24-19:1.) When asked what “death of an individual in police custody” or “police presence” meant, Investigator Bishop replied that “constructive custody” means that “somebody wasn’t in handcuffs or in the back seat of a police vehicle. But they -- the law enforcement was present at the time that somebody, unfortunately, died. And so that’s another factor why they called us.” (Crim. Feb. 25, 2026 Tr., 19:3-11.)

Here, Investigator Bishop’s testimony does not establish any new facts. At the time that Plaintiffs filed their initial *Pitchess* motion, Plaintiffs were aware that a taser was used, and that officers were present when Decedent died. The fact that the Sheriff’s Department refers to these events as “use of force” or “constructive custody” does not establish any new facts to support a renewed motion.

Given the above, Plaintiffs have only established the existence of new facts to renew the *Pitchess* motion as to Officer Arden's taser-related records.

I. *Pitchess* Motion

A motion to discover a law enforcement officer's personnel file or other police agency record that contains relevant information is called a *Pitchess* motion. (*Pitchess v. Sup. Ct.* (1974) 11 Cal.3d 531, 536–40.) The *Pitchess* motion has been partly codified in Evid. Code § 1043, which makes law enforcement personnel records privileged and subject to disclosure only by noticed motion. (Evid. Code § 1043; Pen. Code § 832.7(a).) The statutory scheme governing *Pitchess* motions is set forth in Evid. Code §§ 1043–1047 and Pen. Code §§ 832.5, 832.7, 832.8. (*People v. Mooc* (2001) 26 Cal.4th 1216, 1226.) These statutes provide the exclusive means of discovery of such records in both criminal and civil proceedings. (*Cnty. of Los Angeles v. Sup. Ct.* (1990) 219 Cal.App.3d 1605, 1609–10.)

“Under the statutory scheme, a party seeking discovery of a peace officer's personnel records must follow a two-step process. First, the party must file a written motion describing the type of records sought, supported by affidavits showing good cause for the discovery . . . , setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records. This initial burden is a ‘relatively relaxed standard.’ Information is material if it will facilitate the ascertainment of the facts and a fair trial. A declaration by counsel on information and belief is sufficient to state facts to satisfy the ‘materiality’ component of that section.” (*Haggerty v. Sup. Ct.* (2004) 117 Cal.App.4th 1079, 1085–86 [internal quotations omitted].)

“Second, if the trial court concludes [a party] has fulfilled these prerequisites and made a showing of good cause, the custodian of records should bring to court all documents ‘potentially relevant’ to the [requesting party's] motion The trial court ‘shall examine the information in chambers, out of the presence and hearing of all persons except the person authorized to possess the records and such other persons the custodian of records is willing to have present Subject to statutory exceptions and limitations . . . the trial court should then disclose to the defendant such information that is relevant to the subject matter involved in the pending litigation.” (*Haggerty, supra*, 117 Cal.App.4th at 1086 [internal quotation marks & quotations omitted].)

Peace officer personnel records are presumptively confidential and protected from disclosure. (Pen. Code § 832.7; Evid. Code §§ 1040(b), 1043(a).) To obtain such records, the moving party must file a written motion supported by declarations demonstrating good cause, including a “specific factual scenario” establishing a “plausible factual foundation” for the alleged officer misconduct. (*City of Santa Cruz v. Municipal Ct.* (1989) 49 Cal.3d 74, 85; Evid. Code § 1043(b)(3).) The declaration must: (1) set forth facts reasonably supporting the claim of officer misconduct, (2) propose a legal theory related to the alleged misconduct, and (3) explain how the requested

records may lead to relevant evidence or be admissible as direct or impeachment evidence. (*Warrick v. Sup. Ct.* (2005) 35 Cal.4th 1011, 1024–25.) Conclusory or boilerplate assertions of relevance are insufficient. (*People v. Collins* (2004) 115 Cal.App.4th 137, 151; *City of San Jose v. Sup. Ct.* (1998) 67 Cal.App.4th 1135, 1146–47.) The requesting party must clearly articulate how the records relate to the litigation and cannot rely on speculation. (*People v. Memro* (1985) 38 Cal.3d 658, 682, overruled on unrelated grounds by *People v. Gaines* (2009) 46 Cal.4th 172, 181, fn. 2.)

Good cause must be sufficiently specific to preclude the possibility of merely seeking helpful information. (*People v. Mooc* (2001) 26 Cal.4th 1216, 1226.) The moving party only needs to show a plausible factual foundation for discovery. (*Warrick, supra*, 35 Cal.4th at 1019.) All that is required is the presentation of a scenario that may have or could have occurred, which is a relatively low threshold. (*Uybungco v. Superior Court* (2008) 163 Cal.App.4th 1043, 1048.) An attorney declaration based upon information and belief and containing hearsay may be used to evidence good cause in support of a *Pitchess* motion. (*Haggerty v. Superior Court.* (2004) 117 Cal.App.4th 1079, 1086.)

“Good cause for discovery exists when the defendant shows both ‘ ‘ ‘materiality’ to the subject matter of the pending litigation and a ‘reasonable belief’ that the agency has the type of information sought.’ ” [Citation.] A showing of good cause is measured by “ ‘relatively relaxed standards’ ” that serve to “ ‘insure the production’ ” for trial court review of “ ‘all potentially relevant documents.’ ” (*Warrick, supra*, 35 Cal.4th at 1016.) It “is a ‘relatively low threshold for discovery.’ ” (*Id.* at 1019.)

As noted above, Plaintiffs have only established the existence of new facts to renew the *Pitchess* motion as to Officer Arden’s taser-related records. Specifically, Plaintiffs seek “1. Prior Force / Taser-Related Complaint and Review Records: Records concerning Officer Arden’s prior taser deployments or other prior uses of force during calls for service, to the extent such records are maintained in personnel, complaint, internal affairs, disciplinary, or related evaluative files...4. Taser Certification and Recertification Records: All records reflecting Officer Arden’s initial taser certification, annual or periodic taser recertification, remedial taser training, suspension or lapse of certification, and/or documented failure to meet taser qualification standards...[and] 5. Training Deficiency and Corrective Records: Any records contained within the personnel or training files of Officers Arden and Kramer reflecting documented training deficiencies, corrective action, counseling memoranda, or remedial instruction relating to use of force, electronic control device deployment, de-escalation, tactical coordination, or post-force response.” (Notice, pp. ii-iii.)

“California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. [Citation.] Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes. [Citation.]” (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.)

Here, Officer Arden's taser-related complaint and review records, taser certification and recertification records, and training deficiency and corrective records are all relevant to Plaintiffs' a claim for negligent training, which it alleges that City is vicariously liable for. (FAC, ¶ 72-75.)